

Criminal Law, Investigation and Procedure Victoria

Trial Procedure

Evidence

Evidence Act 2008 (Annotated)

Chapter 2 – Adducing Evidence (ss 12–54)

Part 2.1 – Witnesses (ss 12–46)

Division 1 – Competence and compellability of witnesses (ss 12–20)

Competence and compellability

Last Review: 28/09/2023

12 Competence and compellability

Legislation

Except as otherwise provided by this Act—

- (a) every person is competent to give evidence; and
- (b) a person who is competent to give evidence about a fact is compellable to give that evidence.

View [s 12 of the Evidence Act 2008 \(Vic\)](#) within the legislation collection.

SECTION 12 COMMENTARY

[EA.12.20] Overview

Competence and compellability are related but distinct concepts. Competence focuses on who can give evidence in court. Compellability focuses on who can be forced to give evidence. The starting point is that all people are competent and compellable: [s 12](#).